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U.S. Department
of Transportation

Research and
Special Programs
Administration

And Seventh Street, N.W.
Washington, D.C. 20590

APR 22 1992

DOT-E 10768

1. Sun Refining and Marketing Company, Philadelphia, Pennsylvania is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a flammable liquid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of two DOT Specification 111A100W1 tank cars which have defective interior heating coils and provides no relief from any regulations other than as specifically stated.
2. BASIS. This emergency exemption is based on Sun Refining and Marketing Company's application of April 13, 1992, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for the protection of life and property.
3. HAZARDOUS MATERIALS (Descriptor and class). Petroleum naphtha, classed as a flammable liquid.
4. PROPER SHIPPING NAME (49 CFR 172.101). Petroleum Naphtha.
5. REGULATION AFFECTED. 49 CFR 173.29(c)(1) and 174.67(k).
6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.
7. SAFETY CONTROL MEASURES. Packagings prescribed are DOT Specification 111A100W1 tank cars, SUNX 26846 and SUNX 78108, meeting all DOT requirements (49 CFR Parts 100-299), except that the interior heating coils are cracked. Interior heating coil outlet plugs have been installed on each tank car to prevent the release of product.
8. SPECIAL PROVISIONS.
 - a. Shipment for tank car, SUNX 26846, must be between Sun Refining and Marketing Company, Toledo, Ohio, and G.E. Railcar, Sayre, Pennsylvania, a distance of approximately 200 miles, using the most direct route via Norfolk Southern Corporation and Consolidated Rail Corporation. Shipment for tank car, SUNX 78108, must be between GATX Terminals, Philadelphia, Pennsylvania, and G.E. Railcar, Sayre, Pennsylvania, a distance of approximately 200 miles, using the most direct route via Consolidated Rail Corporation.

b. Tank cars must be marked "DOT-E 10768" in four inch letters on a contrasting background above the DOT specification number.

c. The Federal Railroad Administration is to be notified if any unusual incident, such as a derailment or exterior tank damage, occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

e. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

10. EXPIRATION DATE. May 16, 1992.

Issued at Washington, D.C.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

APR 22 1992

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

Dist: FRA.